

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

4. AMY KNIERIEM V. BEAU MICHAEL LEMIRE

24FL0133

On March 11, 2026, Respondent filed a Request for Order (RFO) seeking attorney's fees and a vocational evaluation. The RFO and a blank FL-320 were served on March 16th, however Respondent failed to serve the Notice of Tentative Ruling as required.

Respondent filed his Income and Expense Declaration on April 1, 2026. It was served on March 31st.

Petitioner filed and served her Responsive Declaration to Request for Order, a Declaration of Callie B. Cambridge, and her Income and Expense Declaration on June 2, 2026.

On June 15th, Respondent filed a Declaration of Christie B. Mitchell in Opposition to Petitioner's Request for Affirmative Relief. The court deems this to be a reply declaration, and as such, it is late filed. Civil Procedure section 1005(b) states all reply papers are to be filed at least five court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made June 11th the last day for filing the reply, therefore it is late filed and has not been read or considered by the court.

Respondent is requesting child support orders but prior to making such orders, he asks that Petitioner be ordered to undergo a vocational evaluation with Patrick Sullivan. He asks the court to reserve jurisdiction on support until completion of the evaluation. He also requests attorney's fees in the amount of \$4,250 pursuant to Family Code § 271.

Petitioner agrees to submit to a vocational evaluation at Respondent's sole expense so long as Respondent proposes three providers and Petitioner be permitted to choose one. She further requests attorney's fees in the amount of \$1,500.

The request for a vocational evaluation is granted. Respondent shall propose the names of three evaluators to Petitioner no later than June 25th, Petitioner shall choose one of the three and inform Respondent of her choice no later than July 2nd. If Petitioner does not make her choice by that day, then Respondent shall have sole discretion to choose the evaluator. Respondent is to pay the cost of the evaluation, subject to reallocation at trial.

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The request to reserve jurisdiction over child support is denied as the parties are already pending trial on the issue of child support which is set to commence on July 13th.

Respondent's request for attorney's fees is denied. Section 271 states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a). Respondent has failed to establish how Petitioner's actions frustrated the policy of the law where Respondent did not meet and confer with Petitioner on the issue of a vocational evaluation prior to filing the RFO. Given his failure to establish grounds for the requested attorney's fees, the request is denied.

The court reserves jurisdiction on Petitioner's request for Section 271 attorney's fees until the time of trial on the final division of assets.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: THE REQUEST FOR A VOCATIONAL EVALUATION IS GRANTED. RESPONDENT SHALL PROPOSE THE NAMES OF THREE EVALUATORS TO PETITIONER NO LATER THAN JUNE 25TH, PETITIONER SHALL CHOOSE ONE OF THE THREE AND INFORM RESPONDENT OF HER CHOICE NO LATER THAN JULY 2ND. IF PETITIONER DOES NOT MAKE HER CHOICE BY THAT DAY, THEN RESPONDENT SHALL HAVE SOLE DISCRETION TO CHOOSE THE EVALUATOR. RESPONDENT IS TO PAY THE COST OF THE EVALUATION, SUBJECT TO REALLOCATION AT TRIAL.

THE REQUEST TO RESERVE JURISDICTION OVER CHILD SUPPORT IS DENIED AS THE PARTIES ARE ALREADY PENDING TRIAL ON THE ISSUE OF CHILD SUPPORT WHICH IS SET TO COMMENCE ON JULY 13TH.

RESPONDENT'S REQUEST FOR ATTORNEY'S FEES IS DENIED.

THE COURT RESERVES JURISDICTION ON PETITIONER'S REQUEST FOR SECTION 271 ATTORNEY'S FEES UNTIL THE TIME OF TRIAL ON THE FINAL DIVISION OF ASSETS.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE

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COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. ALEX KRUMWIEDE V. HANNAH KRUMWIEDE

23FL1044

On April 6, 2026, Petitioner filed a Request for Order (RFO) seeking the release of trust funds and entry of the Judgment. The RFO was originally heard on an ex parte basis. The court granted the request regarding the trust funds but declined to enter judgment on an ex parte basis.

Respondent filed her Responsive Declaration to Request for Order and an additional supporting declaration on April 3rd. Both documents were served the same day as filing.

Petitioner asks the court to enter judgment which is attached as Exhibit E to the RFO.

It appears the RFO and ex parte orders were not personally served. The parties are ordered to appear to address the defect in service.

TENTATIVE RULING #5: THE PARTIES ARE ORDERED TO APPEAR TO ADDRESS THE DEFECT IN SERVICE.